

22GDCV00595 22GDCV00595

County: los-angeles

Division: Civil Law and Motion

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Case Number: 22GDCV00595 Hearing Date: September 11, 2026 Dept: D

TENTATIVE RULING

Calendar: 1

Date: September 11, 2026

Case No: 22GDCV00595 Trial Date: Not yet set

Case Name: Akopyan v. Airapetian, et al.

MOTION TO QUASH

[CCP § 418.10]

Moving Party: Specially Appearing Defendant, Anna Airapetian

Responding Party: Plaintiff, Edvard Akopyan [Unopposed]

RELIEF REQUESTED:

Quash service of summons and Complaint as to Anna Airapetian

CAUSES OF ACTION: from Complaint

1) Fraud

2) Intentional Misrepresentation

- 3) Negligent Misrepresentation
- 4) Fraud by Wire in Violation of United States Code Title 18 § 1343
- 5) Breach of Contract
- 6) Breach of Covenant of Good Faith and Fair Dealings
- 7) Conversion
- 8) Intentional Interference with Prospective Economic Advantage
- 9) Negligent Interference with Prospective Economic Advantage
- 10) Intentional Infliction of Emotional Distress
- 11) Unjust Enrichment
- 12) Conspiracy

SUMMARY OF FACTS:

Edvard Akopyan ("Plaintiff") alleges that Anna Airapetian ("Airapetian") and Tamara S. Chirkalina ("Chirkalina") (collectively, "Defendants") became indebted to Plaintiff in the amounts of \$17,000 and \$25,000 for Plaintiff's services rendered. Plaintiff alleges that Defendants failed to issue a check for \$17,000 and refused to pay \$25,000 when requested.

ANALYSIS:

"Service of process, under longstanding tradition in our system of justice, is fundamental to any procedural imposition on a named defendant." (AO Alfa-Bank v. Yakovlev (2018) 21 Cal.App.5th 189, 202 [internal citations omitted].) "To establish personal jurisdiction, compliance with statutory procedures for service of process is essential." (Kremerman v. White (2021) 71 Cal.App.5th 358, 371.) Defendant's knowledge of the action does not dispense with statutory requirements for service of summons. (Kappel v. Bartlett (1988) 200 Cal.App.3d 1457, 1466.)

"A defendant, on or before the last day of his or her time to plead or within any further time that the court may for good cause allow" may move "to quash service of summons on the ground of lack of jurisdiction of the court over him or her" that results from lack of proper service. (CCP, § 418.10, subd. (a)(1).) A defendant has 30 days after the service of the summons to file a responsive pleading. (CCP, § 412.20, subd. (a)(3).)

Once a challenge to a court's personal jurisdiction is filed, "the burden of proof is placed upon the plaintiff to establish the facts of jurisdiction by a preponderance of the evidence. This may be done through presentation of declarations, with opposing declarations received in response." (CenterPoint Energy, Inc. v. Superior Court (2007) 157 Cal.App.4th 1101, 1118 (citing Aquila, Inc. v. Superior Court (2007) 148 Cal.App.4th 556, 568).) "When a defendant challenges the court's personal jurisdiction on the ground of improper service of process 'the burden is on the plaintiff to prove the existence of jurisdiction by proving, inter alia, the facts requisite to an effective service.'" (Summers v. McClanahan (2006)

Airapetian argues that the summons and Complaint were not properly served and that the Court lacks jurisdiction over her.

“A summons may be served by publication if upon affidavit it appears to the satisfaction of the court in which the action is pending that the party to be served cannot with reasonable diligence be served in another manner specified in this article and that either: (1) A cause of action exists against the party upon whom service is to be made or he or she is a necessary or proper party to the action. (2) The party to be served has or claims an interest in real or personal property in this state that is subject to the jurisdiction of the court or the relief demanded in the action consists wholly or in part in excluding the party from any interest in the property.” (CCP § 415.50 subd. (a).)

“The court shall order the summons to be published in a named newspaper, published in this state, that is most likely to give actual notice to the party to be served. If the party to be served resides or is located out of this state, the court may also order the summons to be published in a named newspaper outside this state that is most likely to give actual notice to that party. The order shall direct that a copy of the summons, the complaint, and the order for publication be forthwith mailed to the party if his or her address is ascertained before expiration of the time prescribed for publication of the summons.” (CCP § 415.50 subd. (b).)

On January 16, 2026, the Court granted Plaintiff’s application to serve Airapetian by publication in the New York Jewish Press. (1/16/2026 Order.) Plaintiff filed proof of publication on four dates in The Jewish Press. (3/06/2026 Notice of Completion.)

Airapetian argues that The Jewish Press is not the newspaper most likely to give her actual notice. Airapetian notes that the “The Jewish Press is an independent, Brooklyn-based weekly paper that describes its content as an ‘eclectic mix of Jewish news, political and religious commentary’ that ‘has championed Torah values and ideals from a centrist or Modern Orthodox perspective.’” (Mot., p. 6:18-21.) Airapetian is neither Jewish nor has “any other known reason to regularly read a Brooklyn-based Orthodox Jewish publication.” (Airapetian Decl., ¶ 6; Mot., p. 6:22-23.) Airapetian argues that Plaintiff also failed to comply with the Court’s order for publication because he failed to file a declaration of mailing at the expiration of the time prescribed for publication, or a declaration of the fact that Airapetian’s address was not ascertained. (Mot., p. 13:17-28.) Airapetian further argues that the published summons is not Code-compliant because it does not include all the required elements pursuant to CCP section 412.20. (Mot., pp. 12:9-13:15.)

In addition, Airapetian argues that the Court lacks jurisdiction over her because she is a resident of New York, has never lived in California, never owned or rented real property in California, and has never worked or conducted any business in California. (Airapetian Decl., ¶¶ 2-3.) The Complaint does not allege any conduct by Airapetian in California. (Compl., ¶ 7.) The Complaint alleges that Airapetian is “an individual, with the place of residence and/or business in the USA.” (Compl., ¶ 2.)

Lastly, Plaintiff has not filed any timely opposition to this motion. When a defendant challenges the court’s personal¿jurisdiction, it is the plaintiff’s burden to establish proper service. (Dill v. Berquist Const. Co., Inc. (1994) 24 Cal.App.4th 1426, 1439-1440.) Plaintiff fails to do so here.

Based on the foregoing, the Court finds that it does not have personal jurisdiction over Airapetian based both on improper service and lack of minimum contacts with California.

Thus, the motion is GRANTED.

RULING:

Specially Appearing Defendant Anna Airapetian's Motion to Quash is GRANTED.

The service of summons on Anna Airapetian is QUASHED.

DEPARTMENT D IS CONTINUING TO CONDUCT AND ENCOURAGE

VIDEO APPEARANCES

If you wish to appear remotely on LACourtConnect, you may register by visiting www.lacourt.ca.gov to schedule a remote appearance. Please note that LACourtConnect offers free audio and video appearances. Department D is now requiring either live or VIDEO appearances, not audio appearances.